

The National Environment Appellate Authority (Salary, Allowances And Conditions Of Service Of Members) Rules, 1998

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The National Environment Appellate Authority (Salary, Allowances And Conditions Of Service Of Members) Rules, 1998

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The National Environment Appellate Authority (Salary, Allowances And Conditions Of Service Of Members) Rules, 1998

Rule

THE-NATIONAL-ENVIRONMENT-APPELLATE-AUTHORITY-SALARY-ALLOWANCES-AND-CONDITIONS-OF-SERVICE-OF-MEMBERS-RULES-1998 of 1998

Published on 20 April 1998

Commenced on 20 April 1998

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The National Environment Appellate Authority (Salary, Allowances And Conditions Of Service Of Members) Rules, 1998

Published vide Notification Gazette of India, G.S.R. 189(E) dated 20th April, 1998

1915.

G.S.R. 189(E) dated 20th April, 1998. - In exercise of the powers conferred by sub-section (2) of Section 22 of the National Environment Appellate Authority Act, 1997 (

No. 22 of 1997

), the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the National Environment Appellate Authority (Salary, Allowances and Conditions of Service of Members) Rules, 1998.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires,

(a)

"Act" means the National Environment Appellate Authority Act, 1997;

(b)

"Authority" means the National Environment Appellate Authority established under sub-section (1) of Section 3 of the Act;

(c)

"Chairperson" means the Chairperson of the Authority;

(d)

"Vice-Chairperson" means the Vice-Chairperson of the Authority;

(e)

"Member" means a Member of the Authority.

3.

Tenure.

- A Member shall hold office for a period of three years from the date on which he enters upon his office, but shall be eligible for re-appointment for another term of three years;

Provided that no Member shall hold office as such after he has attained the age of sixty-five whichever is earlier.

4.

Pay.

- A Member shall be entitled to a pay scale not exceeding Rs. 22400-525- 24500/-. The pay will be fixed in accordance with prevailing orders that is pay minus pension.

(i)

A Member shall be entitled to dearness allowance and city compensatory allowance at the rates admissible to the officers of equivalent level in the Central Government.

(ii)

Leave Travel Concession, Travelling Allowance and Daily Allowance on tour, shall be paid to Members as applicable to the Government servant drawing that basic pay. They will also be entitled to facility of temporary Government accommodation in guest house/inspection bungalow run by the Central Government, wherever applicable, on payment of normal rent at outstation, of the class to which Government servant of equivalent pay are eligible.

(iii)

Official visits abroad by a Member shall be governed by Government's orders applicable to officer of equal grade in the Government of India.

(iv)

A Member shall be entitled to medical treatment and hospital facilities as provided in the Central Government Health Scheme (CGHS) as applicable to a retired Government servant. At places where the CGHS scheme is not in operation, he shall be entitled to reimbursement facilities provided under the Central Services (Medical Attendance) Rules.

5.

Leave.

- A Member would be entitled to 30 days of earned leave, for every year of service. The payment of leave salary during leave shall be governed by rule 40 of Central Civil Service (Leave) Rules, 1972. A person would be entitled to encashment of 50% of earned leave to his credit at any time.

6.

GPF/CPF, Pension and Gratuity.

- A Member would be governed by Contributory Provident Fund Rules and no option to subscribe under General Provident Fund Rules will be available. Additional pension and gratuity will not be admissible for service rendered in the Authority.

7.

Eligibility for Re-employment.

- There shall be bar on private employment of Members for two years in respect of organisations that fall within the operational jurisdiction of the National Environment Appellate Authority, after demitting office of Member.

8.

Transport.

- A Member is eligible for reimbursement between Rs. 3000/- and Rs. 5,000/- per month as fixed by Department of Personnel and Training, from time to time, for the use and maintenance of his/her personal car for transportation between residence and office. This would include the salary of a driver who would not be a Government servant.

9.

Accommodation.

- A Member is entitled for House Rent Allowance at the rate of 30% of the basic pay drawn, if he/she stays in Delhi. Outside Delhi, he/she shall be entitled to rented unfurnished accommodation with built up area measuring around 300 sq. meters in the National Capital Region (NCR) with suitable open land area appurtenant as permissible under the regulations of the concerned municipal bodies.

10.

Saving.

- Any matter, not expressly provided in these rules, shall be referred in each case to the Central Government for its decision and the decision of the Central Government thereon shall be final.

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